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Case Number: 25TRCV03754 Hearing Date: September 1, 2026 Dept: B

Moving Parties: Cross-defendants Simon

Krymov and Larisa Ispravnikova

Responding

Party: Cross-complainants Camille Morrissey and Richard Owen

Minars

Demurrer to Cross-complaint

The Court considered the moving, opposition, and reply papers.

RULING

See

below.

BACKGROUND

On October 31, 2025, plaintiff Nikita Krymov, a minor, by Simon Krymov, guardian ad litem, filed a complaint against Matt Spraggins, Timmy Anderson, Chasen Lafolette, Camille Morrissey, and Richard Owen Minars for (1) general negligence, (2) premises liability, (3) negligent supervision, (4) assault, (5) battery, and (6) IIED.

On

April 24, 2026, defendants Camille Morrissey and Richard Own Minars filed a cross-complaint against cross-defendants Simon Krymov, Larisa Ispravnikova, Matt Spraggins, Timmy Anderson, and Chasen Lafolette for (1) indemnity, (2)

equitable contribution, (3) declaratory relief, (4) general negligence/negligence per se, and (5) negligent supervision of a minor.

On

August 5, 2026, the Court granted in part and denied in part defendants' motions to compel further responses to interrogatories.

On

August 12, 2026, the Court granted in part and denied in part defendants' motions to compel further responses to request for production of documents and request for admissions.

LEGAL

AUTHORITY

When

considering demurrers, courts read the allegations liberally and in context. *Taylor v. City of Los Angeles Dept. of Water and Power* (2006) 144 Cal. App. 4th 1216, 1228. "A demurrer tests the pleadings alone and not the evidence or other extrinsic matters. Therefore, it lies only where the defects appear on the face of the pleading or are judicially noticed." *SKF Farms v. Superior Court* (1984) 153 Cal. App. 3d 902, 905. "The only issue involved in a demurrer hearing is whether the complaint, as it stands, unconnected with extraneous matters, states a cause of action." *Hahn v. Mirda* (2007) 147 Cal. App. 4th 740, 747. Sufficient facts are the essential facts of the case "with reasonable precision and with particularity sufficiently specific to acquaint the defendant with the nature, source, and extent of his cause of action." *Gressley v. Williams* (1961) 193 Cal. App. 2d 636, 643-44.

DISCUSSION

Cross-defendants

Simon Krymov and Larisa Ispravnikova demur to each of the causes of action in the cross-complaint against them on the ground that they fail to state sufficient facts to constitute a cause of action and are uncertain.

As

context, the complaint alleges that plaintiff was a lawful invitee at defendants' residence located at 4815 West

131st Street, Hawthorne.

Complaint, ¶10. At all relevant times, defendant Camille Morrissey owned, leased, rented, occupied, and/or controlled the party property where the gathering occurred. These defendants knew or should have known that dangerous and unsafe conditions existed or were likely to exist on the premises and negligently failed to monitor, supervise, or secure the property to prevent foreseeable harm to guests, including plaintiff. Id., ¶11.

On October 31, 2023, plaintiff, then fifteen years old, was lawfully on the property when he was suddenly and without warning attacked and physically assaulted by several juveniles who were also present at the premises. Id., ¶12.

Defendant Camille Morrissey failed to properly supervise the individuals present on the property and failed to exercise reasonable care to ensure the safety of guests, including plaintiff.

Id., ¶13. As a result of the assault, plaintiff suffered severe head injuries. Id., ¶14.

The cross-complaint alleges that cross-defendants Simon Krymov and Larisa Ispravnikova were the legal guardians and custodians of plaintiff.

The Court notes that there are no paragraph numbers in the cross-complaint to reference.

First
cause of action for indemnity

“The elements of a cause of action for equitable indemnity are (1) a showing of fault on the part of the indemnitor and (2) resulting damages to the indemnitee for which the indemnitor is . . . equitably responsible.” C.W. Howe Partners Inc. v. Mooradian (2019) 43 Cal App. 5th 688, 700 (citations and internal quotations omitted). “It is well-settled in California that equitable indemnity is only available among tortfeasors who are jointly and severally liable for the plaintiff’s injury.” Stop Loss Ins. Brokers, Inc. v. Brown & Toland Medical Group (2006) 143 Cal. App. 4th 1036, 1040. “[A]n action for equitable indemnity is premised upon a joint legal obligation to another for damages.” Children’s Hospital v. Sedgwick (1996) 45 Cal. App. 4th 1780, 1787 (citation omitted).

The
cross-complaint alleges that plaintiff suffered from a long and ongoing history

of behavioral disorders, for which he was prescribed medication by his treating medical professionals. Plaintiff was using illegal drugs, and consuming alcohol underage in excessively dangerous quantities. Plaintiff was participating and engaging in violent and/or hateful conduct and behavior with and against other persons. Plaintiff was being supplied money to purchase alcohol, drugs, transportation, and admission to parties, and to otherwise participate in dangerous and illegal activities. The incident which gives rise to this litigation occurred on October 31, 2023, in which plaintiff inserted himself into a physical altercation, which also involved Matt Spraggins, Timmy Anderson, and Chasen Lafolette. Plaintiff presented to the hospital and it was determined that the minor's blood alcohol content exceeded .259%. If any such injuries, as alleged in the complaint, did in fact occur, which cross-complainants deny, the injuries occurred solely as a direct and proximate consequence of the negligence of cross-defendants. If cross-complainants are found to be negligent, then such negligence was passive, whereas the negligence of cross-defendants was active in that cross-defendants negligently and carelessly supervised and maintained legal guardianship and custody of plaintiff, which negligence and carelessness thereby caused and/or contributed to plaintiff's alleged injuries and damages. Cross-complainants are entitled to indemnification.

Cross-defendants argue that this claim fails without an established duty, and that this claim is derivative of the causes of action for negligence and negligent supervision. As argued below, those claims are deficient and thus without derivative or vicarious liability, the claim for indemnity also fails. Cross-defendants note that comparative fault principles govern any sharing of that responsibility, and that comparative fault would be an affirmative defense.

In opposition, cross-complainants argue that the allegations are sufficient.

The Court finds that the allegations are insufficient and conclusory. Cross-complainants do not allege facts to support cross-defendants' fault as to the incident. The allegations are insufficient that cross-defendants are joint-tortfeasors.

The
demurrer is SUSTAINED WITH LEAVE TO AMEND.

Second cause of action for
equitable contribution

The
cross-complaint alleges that cross-defendants were negligent with the matters
referenced in the complaint. If
cross-complainants are found to have been in some manner liable for damages,
such liability will be far in excess of the liability attributable to any fault
of cross-complainants. Cross-complainants
are entitled to indemnity, which is attributable to the comparative fault of
each cross-defendant.

Cross-defendants argue that this claim is premature as it
arises only after a joint money judgment.
See CCP §875(a) ("Where a money judgment has been rendered jointly
against two or more defendants in a tort action there shall be a right of
contribution among them").
Cross-defendants assert that this claim is duplicative to the first
cause of action seeks identical relief.

In opposition, cross-complainant argues that the
allegations are sufficient.

The Court finds that the cause of action is duplicative
of the first cause of action, which seeks to apportion liability among joint
tortfeasors.

The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

Third cause of action for
declaratory relief

The cross-complaint alleges that there exists a
controversy between the parties in that cross-complainants contend that if
plaintiff sustained damages and injuries for the reasons as alleged in the
complaint, and is awarded judgment against cross-complainants, then

cross-complainants are entitled to indemnification to recover against cross-defendants.

Cross-defendants argue that this claim is unnecessary where other claims resolve the controversy and merely restates the indemnity and contribution theories.

In opposition, cross-complainants argue that the allegations are sufficient.

The Court finds that the allegations are insufficient to support an existing controversy between cross-complainants and cross-defendants. Further, the claim is duplicative, unnecessary, and superfluous. See *Hood v. Superior Court* (1995) 33 Cal. App. 4th 319, 324. "The declaratory relief statute should not be used for the purpose of anticipating and determining an issue which can be determined in the main action. The object of the statute is to afford a new form of relief where needed and not to furnish a litigant with a second cause of action for the determination of identical issues."

The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

Fourth cause of action for general negligence/negligence per se

"'Negligence per se' is an evidentiary doctrine codified at Evidence Code section 669." *Quiroz v. Seventh Ave. Center* (2006) 140 Cal. App. 4th 1256, 1285. Under Evidence Code §669, "(a) The failure of a person to exercise due care is presumed if: (1) He violated a statute, ordinance, or regulation of a public entity; (2) The violation proximately caused death or injury to person or property; (3) The death or injury resulted from an occurrence of the nature which the statute, ordinance, or regulation was designed to prevent; and (4) The person suffering the death or the injury to his person or property was one of the class of persons for whose protection the statute, ordinance, or regulation was adopted." "[T]he doctrine of negligence per se does not establish tort liability. . . . [T]o apply negligence per se is not to state an independent cause of action. The

doctrine does not provide a private right of action for violation of a statute.” Id. (citations omitted).

The cross-complaint alleges that Krymov and Ispravnikova owed a duty to exercise care in the supervision, legal guardianship, and custodianship of plaintiff. They breached that duty by failing to exercise reasonable care, supervision, protection, and control over plaintiff as required by Penal Code §272 and Bus. and Prof. Code §25658 (selling, furnishing, or giving alcoholic beverages to people under 21). The statutes violated were designed to prevent the type of harm that occurred and to protect persons such as cross-complainants from the risk of injury and loss arising from the unsafe and irresponsible neglect and endangerment of a minor child.

Under Penal Code §272, “(a)(1), Every person who commits any act or omits the performance of any duty, which act or omission causes or tends to cause or encourage any person under the age of 18 years to come within the provisions of Section 300, 601, or 602 of the Welfare and Institutions Code or which act or omission contributes thereto, or any person who, by any act or omission, or by threats, commands, or persuasion, induces or endeavors to induce any person under the age of 18 years or any ward or dependent child of the juvenile court to fail or refuse to conform to a lawful order of the juvenile court, or to do or to perform any act or to follow any course of conduct or to so live as would cause or manifestly tend to cause that person to become or to remain a person within the provisions of Section 300, 601, or 602 of the Welfare and Institutions Code, is guilty of a misdemeanor. . . . (2) For purposes of this subdivision, a parent or legal guardian to any person under the age of 18 years shall have the duty to exercise reasonable care, supervision, protection, and control over their minor child.”

Cross-defendants argue that this claim fails because negligence per se is not a cause of action but rather an evidentiary presumption. Cross-defendants further contend that the cross-complaint does not allege any violative act by either parent and that no duty is owed to cross-complainants.

In opposition, cross-complainants argue that the allegations are sufficient.

The Court finds that the allegations are insufficient and

conclusory. "Negligence per se" is not an independent cause of action. The cross-complaint does not allege any facts to support the elements under Evidence Code §669. Further, the allegations as to underlying negligence are insufficient as there are no allegations that cross-defendants had a duty to cross-complainants or that cross-complainants suffered damages.

The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

Fifth cause of action for negligent supervision of a minor

“[A] parent may become liable for an injury caused by the child where the parent's negligence made it possible for the child to cause the injury complained of, and probable that [the child] would do so.” Hoff v. Vacaville Unified School Dist. (1998) 19 Cal. 4th 925, 934 (citation omitted). “California follows the Restatement rule, which finds a “special relationship” between parent and child, and accordingly places upon the parent a duty to exercise reasonable care so to his minor child as to prevent [the child] from intentionally harming others or from so [behaving] . . . as to create an unreasonable risk of bodily harm to them, if the parent (a) knows or has reason to know that he has the ability to control his child, and (b) knows or should know of the necessity and opportunity for exercising such control.” Id. at 934-935 (citation omitted).

Under Civil Code §1714.1, “(a) Any act of willful misconduct of a minor that results in injury or death to another person or in any injury to the property of another shall be imputed to the parent or guardian having custody and control of the minor for all purposes of civil damages, and the parent or guardian having custody and control shall be jointly and severally liable with the minor for any damages resulting from the willful misconduct. (b) Any act of willful misconduct of a minor that results in the defacement of property of another with paint or a similar substance shall be imputed to the parent or guardian having custody and control of the minor for all purposes of civil damages, including court costs, and attorney's fees, to the prevailing party, and the parent or guardian having custody and control shall be jointly and severally liable with the minor for any damages resulting from the willful misconduct, not to exceed twenty-five thousand dollars (\$25,000), except as provided in

subdivision (c), for each tort of the minor.”

The cross-complaint alleges that cross-defendants were negligent in the care, custody, and control of plaintiff thereby causing and/or contributing to the injuries and damages of plaintiff. Cross-complainants seek indemnity and contribution from cross-defendants.

Cross-defendants breached that duty by permitting plaintiff to go unmedicated for his long and ongoing history of behavioral disorders for which he was prescribed medication by his treating medical professionals, including permitting plaintiff to use illegal drugs and consume alcohol underage and in excessively dangerous quantities, including permitting plaintiff to engage in violent and/or hateful conduct and behavior with and against other persons, including permitting plaintiff to be supplied with money to purchase alcohol, drugs, transportation, and admission to parties, including permitting plaintiff to reach a blood alcohol content of 0.259% and insert himself into a physical altercation, despite plaintiff being under their direct supervision, guardianship, and custodianship, and despite knowing that plaintiff was routinely engaged in such dangerous and illegal activities.

Cross-defendants argue that California imposes no vicarious parental liability for a child’s torts. Further, cross-defendants argue that the cross-complaint does not allege “control” of the minor and that the sole allegation is that cross-defendants were his “parents” and “were the legal guardians and custodians of plaintiff.” Cross-defendants further argue that the cross-complaint does not allege any specific, material “propensity,” beyond the bare allegation that plaintiff had ADHD and failed to “take his medication.” Moreover, cross-defendants argue, the allegations do not allege that plaintiff caused them harm.

In opposition, cross-complainants argue that the allegations are sufficient.

The Court finds that the allegations are insufficient. The cross-complaint does not allege underlying willful misconduct of minor plaintiff that resulted in injury to cross-complainants or any duty that cross-defendants owed to cross-complainants.

The demurrer is SUSTAINED WITHOUT LEAVE TO AMEND.

ORDER

The

demurrer is SUSTAINED WITH TWENTY DAYS LEAVE TO AMEND as to the first cause of action and SUSTAINED WITHOUT LEAVE TO AMEND as to the second, third, fourth, and fifth causes of action in the cross-complaint.

Cross-defendants

are to give notice of ruling.